

Airlines, Inc. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Moreover, a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court*, (1997) 58 Cal. App. 4th 1403, 1410, noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “Failure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the Court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

Applied here, the Court finds that Plaintiffs’ failure to timely is deemed to be their consent to the granting of the motion for attorney’s fees and costs.

Ruling

1. Defendant’s Motion for Attorney’s fees and Costs as prevailing Defendants pursuant to Cal. Code of Civ. Proc. § 425.16(c) is granted.
2. Plaintiffs and their attorney, Jonathan Borstein, Bornstein & Bornstein Law Group, shall pay the amount of \$101,340.81 to Defendants no later than thirty (30) days from the date of this hearing.
3. Defendant’s shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of the hearing, attaching a copy of the tentative ruling.

12. 9:00 AM CASE NUMBER: C25-01017

CASE NAME: STEVEN KENT VS. RICHARD KENT

***HEARING ON MOTION IN RE: TO DISQUALIFY CAROLYN CAIN AS DEFENSE COUNSEL DUE TO HER STATUS AS A WITNESS AND CONFLICT OF INTEREST**

FILED BY: KENT, STEVEN JAMES

TENTATIVE RULING:

This motion was vacated on February 24, 2026, at the request of the Plaintiff. No appearance is required at the hearing on February 25, 2026.

13. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: WONG, WENDY, MD

TENTATIVE RULING:

Before the Court is a demurrer by defendants Wendy Wong, M.D. and Golden State Orthopedics to plaintiff’s complaint. For the reasons set forth, the general demurrers to the second and third cause